

Neelu Srivastava v. State of U.P. & Ors.

Allahabad High Court (Lucknow Bench) · Division Bench · 22 January 2025 · 2025:AHC-LKO:4197-DB · Writ-C No. 267 of 2025 · **Writ disposed of; petitioner relegated to clause 6.5 / consumer forum.**

HEADNOTE

A consumer still aggrieved by a rectified electricity bill must pursue clause 6.5 of the Electricity Supply Code, 2005, or the consumer forum; the High Court will not try disputed billing facts under Article 226.

FACTUAL SUMMARY

Neelu Srivastava filed a writ petition before the Allahabad High Court, Lucknow Bench, challenging her electricity bill. Counsel for the respondents informed the Court that the earlier bill had been rectified to Rs. 21,552 and that the electricity meter had also been changed. A communication dated 15 January 2025, with the rectified bill, was taken on record and a copy was supplied to the petitioner. The petitioner nevertheless remained aggrieved by the rectified bill.

HOLDING-UNITS

INTERPLAY · UP-2005::6.5

billing-objection-alternate-remedy

HOLDING

Where the consumer remains aggrieved by a rectified electricity bill, disputed questions of fact cannot be adjudicated under Article 226; the remedy lies before the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005, or before the concerned consumer forum or other prescribed authority. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer still aggrieved by a rectified electricity bill must pursue clause 6.5 of the Electricity Supply Code, 2005, or the consumer forum; the High Court will not try disputed billing facts under Article 226. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RECTIFIED BILL OF RS. 21,552

Left to clause 6.5 / consumer forum; writ court did not examine the bill on merits. ¶ 1